

24STCV09144 24STCV09144

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-07-16

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Case Number: 24STCV09144 Hearing Date: July 16, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 16, 2026

CASE NUMBER

24STCV09144

MOTION

Motion for Judgment on the Pleadings

MOVING PARTY

Defendant Toyota Motor Sales, U.S.A., Inc.

OPPOSING PARTY

None

MOTION

Defendant Toyota

Motor Sales, U.S.A., Inc. ("Defendant") moves for judgment on the pleadings on the

operative complaint of Plaintiff Esmeralda Hernandez ("Plaintiff"). Unfortunately, Plaintiff is deceased. Accordingly, Plaintiff's claims must proceed through

Plaintiff's personal representative or successors-in-interest. (See Code Civ. Proc., §§ 377.30,

377.34.) This action cannot reasonably

proceed without such substitution "because of lack of notice, lack of proper representation, or . . . other disadvantage."

(Sacks v. FSR Brokerage, Inc. (1992) 7 Cal.App.4th 950, 957.)

The Court must continue

Defendant's motion pending substitution of Plaintiff. Upon substitution, Defendant may re-notice the motion as against Plaintiff's personal representative or successor-in-interest.

Therefore, at that the hearing of this

matter, the Court will set an order to show cause why the Court should not

impose sanctions under Code of Civil Procedure section 177.5 against Plaintiff's

counsel, My Lemon Lawyer Group, for failure to comply with this Court's March 9

and June 3, 2026 orders in which the Court expressly ordered counsel of record to

provide a declaration detailing the efforts counsel had made to locate any

personal representative for or successors-in-interest of Plaintiff. Plaintiff's counsel may file a response to the

OSC regarding sanctions no later than five court days prior to the hearing.

The Court will

also set a further order to show cause regarding substitution of

Plaintiff.

Defendant is

ordered to provide notice of the Court's ruling and to file proof of service of same.